

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CREATING A SPECIAL DISTRICT FOR 'CHEYENNE DAYS – LEGENDARY NIGHTS EVENTS', JULY 17, 2020 TO JULY 26, 2020, IN WHICH THE POSSESSION OF OPEN CONTAINERS IS PERMITTED WITHIN THE DOWNTOWN DISTRICT BOUNDARIES."

WHEREAS, the City of Cheyenne Governing Body has amended Section 5.12.110 to allow for creation of special districts in which the possession of open containers is permitted; and

WHEREAS, the Downtown Development Authority (DDA) requests the boundaries of their district be declared a special district for the "Cheyenne Days – Legendary Nights Event" at the following dates and times:

1. Cheyenne Day – Wednesday, July 22, 2020, from 10:00 a.m. to 10:00 p.m.
2. Fridays on the Plaza – Friday, July 24, 2020, from 5:30 p.m. to 9:00 p.m.
3. Saturday, July 25, 2020, from 7:00 a.m. to 10:00 p.m.; and

WHEREAS, Cheyenne Frontier Days is an economic engine for Laramie County that generates approximately \$36.2 million in business activity between visitor spending and the creation of jobs, generating approximately \$1.2 million in local and state sales tax revenue; and

WHEREAS, in the interest of public health and safety, the 2020 Cheyenne Frontier Days has been cancelled due to the coronavirus pandemic; and

WHEREAS, Cheyenne Days – Legendary Nights Events will promote local shopping by offering shopping specials, sidewalk sales, and entertainment including a street dance, concerts, potentially a pancake breakfast, and the Thunderbirds Air Show; and

WHEREAS, shopping locally creates a multiplier effect through direct, indirect, and induced spending which boosts the local economy and creates more local wealth and jobs; and

WHEREAS, a number of studies illustrated on the website of American Independence Business Alliance (AMIBA) have proven a 48% return to the community occurs when you spend locally; and

WHEREAS, the event organizers will comply with any and all laws, rules, and regulations to ensure the safety of the community; and

WHEREAS, adherence to the following requirements are required for participation by alcohol vendors and consumers when open containers are permitted as designated herein:

1. Wristbands shall be awarded by the licensee only to a person 21 years of age or more and must be worn and visible to purchase, possess, or consume liquor within the designated special district downtown area. The wristbands shall have an identifying mark, name, or logo, as required by the City.
2. The only containers for alcoholic beverages in the special district downtown area's public spaces, for the day specified herein, are designated plastic cups. The cups shall have an identifying mark, name, or logo, as required by the City.
3. Beer and malt beverages (including malt beverage alternatives shall be served in 16 oz. cups; servings of wine shall not exceed a 5 oz. serving; and mixed drinks, whose mixed contents shall contain no more than 1.5 oz. of distilled spirit(s) per serving.

4. No outside alcoholic beverage, wine, or malt liquor may be brought into or consumed within the open container area; a violation of this provision is a violation of the City's open container prohibition and potentially other state or local statutes or codes.
5. Nothing herein shall be interpreted as authorizing the possession of open containers of alcoholic liquor or malt beverages in or on motor vehicles.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the boundaries of the Downtown Development Authority district are declared a special district for the purposes of hosting the "Cheyenne Days – Legendary Nights Event" in which the possession of open containers will be permitted during the dates and times designated herein.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2020.

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk